

COPYRIGHT AND COMPLAINTS POLICY

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Prepared by	Designation
Kalpana S	Delivery Manager
Approved by	Designation
Gayathri V	Chief Information Security Officer

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Revision History

#	Version	Release Date	Description of the Change	Created/ Modified by	Approved by
1	1.0	29-Oct-2024	Initial	Kalpana	Gayathri

Review History

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INCIDENT MANAGEMENT POLICY AND PROCEDURES

Purpose:

The purpose of this Copyright and Compliance Policy is to ensure the organization adheres to copyright laws, protecting both the intellectual property of others and the organization's own assets. This policy aims to mitigate legal risks and financial liabilities associated with copyright infringement and ensure that the use of copyrighted material aligns with compliance requirements, specifically focusing on security, confidentiality, and privacy.

Scope:

This policy applies to all employees, contractors, and third-party partners who access, use, or distribute copyrighted materials, including software, documents, media

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(images, audio, video), data, and any other intellectual property (IP). It covers all company-owned devices and networks as well as personal devices used to access company resources.

Policy Statement:

The organization commits to complying with copyright laws and protecting both internal and third-party intellectual property. Copyrighted material should only be used according to applicable copyright licenses or permissions. Unauthorized use, distribution, reproduction, or modification of copyrighted materials is strictly prohibited.

Roles and Responsibilities:

- **Legal & Compliance Team:** Responsible for overseeing copyright compliance, providing guidance on copyright laws, and ensuring the policy aligns with compliance requirements.
- **IT & Security Team:** Ensures that technical controls prevent unauthorized access, duplication, and distribution of copyrighted materials.
- **Employees and Contractors:** Responsible for adhering to this policy and seeking guidance when unsure about the permissible use of copyrighted material.
- **Procurement Team:** Ensures that all third-party software and content acquisitions adhere to licensing requirements and copyright regulations.

Objectives of the Copyright Compliance Policy:

- **Prevent Copyright Infringement:** Ensure that the organization avoids unlicensed use or distribution of copyrighted materials.
- **Protect the Organization's IP:** Safeguard the organization's intellectual property against unauthorized use or distribution.
- **Maintain SOC 2 Compliance:** Ensure that all practices related to copyrighted

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materials meet SOC 2 Trust Service Criteria requirements for security, confidentiality, and privacy.

- **Establish Accountability:** Clearly define roles and responsibilities regarding copyright compliance.

Policy Requirements

Identification and Documentation of Copyrighted Materials

- **Classification of Copyrighted Materials:** Identify and classify all copyrighted materials in the organization, including software, media files, documents, and proprietary data.
- **Inventory Management:** Maintain an inventory of all software, digital media, and third-party content in use, including licensing terms, usage rights, and expiration dates.
- **Licensing and Rights Documentation:** Maintain clear documentation of all licenses, permissions, or rights granted for third-party copyrighted materials.

Copyright Compliance in Software and Digital Media

- **Software Licensing Compliance:** Use software in accordance with its licensing terms, including restrictions on the number of installations, users, or locations. Do not use or install unlicensed or pirated software.
- **Open Source Software (OSS):** Ensure that all open-source software used complies with the relevant licensing terms, and document all OSS dependencies used in development. Ensure any modifications are permitted and follow compliance obligations, such as attribution.
- **Digital Media (Images, Videos, Music):** Only use media that the organization has obtained legally or that is in the public domain. Ensure all licensing agreements or usage rights for digital media are clearly documented and comply with copyright laws.

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Content Creation and Attribution

- **Proper Attribution:** When using or sharing copyrighted material within the limits of fair use, always provide proper attribution to the original creator.
- **Internal Use of Created Content:** When generating original content, including training materials or documents, document ownership rights, including any third-party media or content used.

Monitoring and Detection

- **Usage Monitoring:** Implement systems to monitor the use and distribution of copyrighted materials within the organization to prevent unauthorized reproduction, modification, or sharing.
- **Digital Rights Management (DRM):** Where feasible, use DRM technology to prevent unauthorized copying, sharing, or modification of copyrighted digital media.

Copyright in Third-Party Vendor Relationships

- **Vendor Assessment:** For third-party software or content providers, conduct due diligence to ensure they comply with copyright laws. Request proof of ownership or licensing for any copyrighted material provided.
- **Contractual Requirements:** Include copyright compliance clauses in vendor contracts. Ensure that vendors agree to indemnify the organization against copyright infringement claims related to the provided materials.

Training and Awareness

- **Employee Training:** Provide regular training on copyright laws, licensing requirements, and the organization's copyright policy. Educate employees on identifying copyrighted materials and understanding fair use.
- **Awareness Programs:** Conduct awareness sessions highlighting the importance

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of copyright compliance and the consequences of non-compliance.

Copyright Protection for Organizational Intellectual Property

- **Registration of IP:** Ensure that the organization's copyrighted materials, including software, proprietary documents, and media, are appropriately registered and protected.
- **Copyright Notice:** Use copyright notices on all internal proprietary materials to reinforce the organization's ownership and discourage unauthorized use.
- **Protection of Digital Assets:** Implement access controls and watermarking, where applicable, to prevent unauthorized copying and distribution of proprietary digital assets.

Incident Response and Enforcement

- **Policy Violations:** Define and enforce disciplinary actions for unauthorized use, distribution, or reproduction of copyrighted materials. Clearly outline consequences for employees and contractors violating the policy.
- **Incident Response Process:** Establish a process for responding to copyright infringement claims or incidents. This includes investigation, corrective actions, and mitigation measures.
- **Notification and Resolution:** When infringement is detected or reported, promptly notify affected parties and initiate remediation efforts to resolve the issue and prevent recurrence.

Recordkeeping

Maintain accurate records of:

- **Copyright Ownership and Licenses:** Document all copyright ownership information, licenses, and agreements.
- **Policy Violations:** Record any policy violations, investigations, and actions

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taken.

- **Compliance Documentation:** Retain all relevant compliance documentation, including license agreements, renewal records, and any changes in usage rights.

Alignment with SOC 2 Trust Service Criteria

The Copyright Compliance Policy is designed to meet SOC 2 Trust Service Criteria, with a focus on:

- **Security:** By protecting copyrighted materials, including digital media and software, this policy helps prevent unauthorized access, ensuring the security of intellectual property.
- **Confidentiality:** Protects sensitive content by restricting unauthorized distribution of both third-party and organizational IP.
- **Processing Integrity:** Ensures that only authorized and properly licensed materials are used, which helps maintain data processing integrity.
- **Privacy:** Ensures that any personal information associated with third-party materials is handled according to privacy requirements.

Policy Review and Updates

This policy will be reviewed annually to ensure compliance with current copyright laws, SOC 2 requirements, and changes in technology or business needs. Any updates to copyright laws, SOC 2 criteria, or licensing requirements will be reflected in this policy.

Exceptions

Exceptions to this policy must be documented, reviewed, and approved by the Legal & Compliance Team and communicated to relevant stakeholders. Exceptions must be

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justified, logged, and periodically reviewed for ongoing appropriateness.

Compliance and Enforcement

All employees, contractors, and partners must adhere to this policy. Violations of the Copyright Compliance Policy may result in disciplinary action, up to and including termination of employment or contract, depending on the severity of the violation.